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Provision of May 17, 2023

Register of Provisions

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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning the
protection of natural persons with regard to the
processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter "GDPR");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003,
containing the "Code regarding the protection of personal data" (hereinafter "Code");

HAVING REGARD to General Provision No. 243 of May 15, 2014
containing the "Guidelines on the processing of
personal data, including those contained in acts and
administrative documents, carried out for the purposes of
advertising and transparency on the web by public
entities and other obligated entities," published in G.U. No. 134 of
June 12, 2014 and on www.gpdp.it, doc. web n. 3134436 (hereinafter "Guidelines on Transparency");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in G.U.
No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n.
9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD to the documentation in the records;

HAVING REGARD to the observations made by the Deputy Secretary
General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, on www.gpdp.it, doc.
web n. 1098801;

Reporting Attorney Guido Scorza;

PREAMBLE

1. Introduction

This Authority has received several reports, which
complained of a violation of the regulations regarding
the protection of personal data by the Ministry of
Infrastructure and Transport ("MIT"), which has made
available online identification documents containing
personal data.

In this regard, from the preliminary verification carried out by

this Department, it emerged that at the URL indicated in the report <https://...> it was indeed possible to find several documents – containing personal data and information, including copies of identification documents and health cards – available on web addresses related to the domain of the Ministry of Infrastructure and Sustainable Mobility (XX). Specifically, by conducting a sample selection, it was verified that:

- at the URL <https://...> the file containing information regarding an engineering company was accessible and directly downloadable, which also included the detailed curriculum vitae of two individuals identified in the records and the full-color copy of their respective identity cards;
- at the URL <https://...> the file related to the MIT note prot. n. XX of XX was accessible and directly downloadable, with all related attachments where personal data and information were reported, including the full copy of two identity documents and a health card of two individuals identified in the records.
- at the URL <https://...> the document prot. n. XX of XX from the MIT was accessible and directly downloadable, containing – among other things – the full copy of two identity documents and a health card of two individuals identified in the records.

2. The regulations regarding the protection of personal data

Pursuant to the relevant regulations, "personal data" is "any information relating to an identified or identifiable natural person ('data subject')" and "an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity" (Article 4, paragraph 1, no. 1, of the GDPR). In this context, it is noted that public entities (such as the Ministry) may disseminate "personal data" within the limits set out in Article 2-ter, paragraphs 1 and 3, of the Code, in compliance with the principles regarding the protection of data, including the principle of "minimization," according to which personal data must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed" (Article 5, paragraph 1, letter c, of the GDPR). Furthermore, the data controller is required to implement "by design," that is, both at the time of determining the means of processing and at the time of processing itself, "appropriate technical and organizational measures, [...] aimed at effectively implementing the principles of data protection, such as minimization, and integrating into the processing the necessary safeguards to

satisfy the requirements of this regulation and protect the rights of data subjects," ensuring "that, by default, only personal data necessary for each specific purpose are processed."

****Specific purposes of processing**** (art. 25, paras. 1 and 2, GDPR). The GDPR requires, in light of the principle of accountability, that the data controller not only must comply but also "be able to demonstrate that the processing is carried out in accordance with the [...] regulation [European]" (arts. 5, para. 2; 24).

3. ****Preliminary assessments of the Office on the processing of personal data carried out****

With note prot. no. XX of XX, the MIT provided a response to the Office's request for information (note prot. no. XX of XX).

Regarding what was represented, following the checks carried out based on the elements acquired and the facts emerged as a result of the investigative activity, as well as subsequent assessments, the Office, with note prot. no. XX of XX, established that the Ministry of Infrastructure and Transport—by disseminating personal data online through the publication of the complete copies of identification documents and health cards—has carried out personal data processing that is not compliant with the relevant regulations on personal data protection contained in the GDPR. Therefore, with the same note, the aforementioned Ministry was notified of the violations committed (pursuant to art. 166, para. 5, of the Code), communicating the initiation of proceedings for the adoption of measures referred to in article 58, para. 2, of the GDPR and inviting the aforementioned administration to submit defensive writings or documents to the Authority, and, if necessary, to request to be heard by this Authority, within 30 days (art. 166, paras. 6 and 7, of the Code; as well as art. 18, para. 1, of Law No. 689 of 24/11/1981).

4. ****Defensive writings and hearing****

The Ministry of Infrastructure and Transport, with notes prot. no. XX of XX and prot. no. XX of XX, sent its defensive writings to the Authority regarding the notified violations.

In this regard, it is recalled that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable under art. 168 of the Code, entitled "Falsehood in declarations to the Authority and interruption of the execution of the tasks or the exercise of the powers of the Authority." In particular, in note prot. no. XX, it was represented, among other things, that:

- "the contested publications [...] concerned 81 documents out of more than 90,000 documents published in PAT [i.e. the 'Transparent Administration Portal'], which corresponds to a percentage of about 0.09% and a small number of interested parties";
- "Beyond the reports to the Authority, [...] at present, there are no legal actions taken by the interested parties against the Ministry for improper dissemination of data online";
- "the alleged violation appears to be limited in time and, above all, episodic and not systematic, having concerned, as mentioned, a minimal percentage of publications mostly related to a period prior to the use of the e-procurement platform (documents mainly dating back to the years 2017-2020; few violations remain concerning the years 2021 and 2022)";
- "Regarding the case in question, the contested violations cannot be attributed to fraudulent conduct, as there is no case of authorization for unlawful processing of data expressly provided by senior executives nor in cases of processing that occurred despite contrary advice from the data protection officer. The conduct in question would not even be attributable to negligence, considering the excusability of the conduct, which was induced by the following factors:
 - the uncertainty of the regulatory context regarding publication obligations for transparency purposes, arising from the coexistence of numerous sources, even of different ranks, that have succeeded each other over time,
 - the fear of executives of incurring violations or sanctions for non-compliance with publication obligations";
- "The Ministry immediately took action to remove all erroneously published data, which have, in fact,

all been immediately deleted, except for those resulting from the query available at the link: <https://...>. In this latter case, the failure to delete was not the result of inertia on the part of the Administration, but was due to a technical problem concerning indexing on the general search engine, which has been resolved as quickly as possible. Regarding this last file, the competent authority [responsible for publication] was contacted directly through informal channels to request the immediate removal of the cited file. Since the file, despite being removed from the PAT, was still available on the search engine, Google was also contacted to request the immediate removal of the indexing of the content [...];

- "In addition to the actions related to the specific contested violation, to avoid any future errors and to invite maximum attention to the peripheral structures, the following additional actions have been undertaken:

- circulars from the Cabinet, the Transparency Officer, the General Director for Digitalization, IT systems and statistics, as well as the DPO have been sent to all structures of the Administration regarding the precautions to be taken during the publication of data, the reminder to comply with current regulations, and the principle of accountability [...];
 - following the signing of a specific agreement with the National School of Administration, starting from April 2021, the Administration has made available on its e-learning platform a specific training course on the subject [...].
 - with DM no. XX of XX, a Commission for verification and monitoring of compliance with regulations regarding the processing of personal data, carried out for the purposes of publicity and transparency on the institutional website of the Ministry, was established with the task of verifying compliance with regulations on the protection of personal data, in relation to processing carried out for the purposes of publicity and transparency on the institutional website of the Ministry, within the activities related to the fulfillment of publication obligations established by transparency regulations and, in particular, by Legislative Decree of March 14, 2013, no. 33»;
- «regarding the principle of privacy by design, it is noted, as also emerged from correspondence with the maintenance company of the PAT, that “the PAT software is compliant and offers a series of features aimed at supporting the data controller for correct data entry into the platforms” [...]; Furthermore, on XX, a hearing requested by the MIT pursuant to Article 166, paragraph 6, of the Code took place via remote videoconference, during which additional clarifications were provided. Specifically, providing further details on what has already been described in the defense briefs regarding the conduct maintained, it was highlighted, among other things, that:
- «the administration immediately took action to resolve the critical issues regarding the protection of personal data reported by the Guarantor»;
 - «In relation to the internal organization of the Ministry, [there is] a complexity of the administrative structure that includes many central and peripheral articulations, with very different competencies across the national territory (six centers of administrative responsibility, about 40 between General Directorates and Bodies, including interregional procurement offices for public works – with main offices and coordinates in each Region – and territorial General Directorates – with Motor Vehicle Offices and Vehicle Testing Centers at the provincial level – for a total of more than 360 Offices in addition to the Corps of the Port Authorities). It is specified that all the representatives in the national territory (approx. 530) have been trained and authorized for publication on the institutional portal. To highlight the complexity of the system, it is noted that currently the documents published on the transparent administration portal are approx. 120,000. [...] The internet editorial team is responsible for supporting the representatives, but clearly there may still be risks related to potential human errors»;
 - «Regarding the activities of the Commission, sample checks were carried out on the documents published, from which it emerged that the non-conformities identified, in any case minimal compared to the volume of documents published online on the institutional website, were all promptly reported to the heads of the relevant structures who confirmed their resolution. Currently, efforts are being made not only to raise awareness but also to increase the awareness of the structures regarding compliance with privacy rules, and it is specified that the major issues have been recorded concerning the Procurement Offices for the publication obligations related to procurement procedures and the appointment of consultants and collaborators involved in the aforementioned procedures. It is specified that, for this reason, specific training has been scheduled for the R.U.P. regarding compliance with

privacy rules in the online publication of documents of relative competence».

- «the Ministry, in addition to promptly taking action to resolve the identified critical issues, has requested the search engine Google to remove also the “thumbnails” (i.e., low-resolution previews) of the identification documents of the interested parties, which are automatically retained by the search engine even after the file has been removed. This action was taken in order to further minimize the presence of the aforementioned “thumbnails” on the search engine. However, some identification documents were found online due to a human error in the methods used to remove the file through the IT tool».

- «in the case of personal data not subject to mandatory publication, they are also obscured in the Transparent Administration Portal and not only de-indexed (as specified in all instructions provided to the representatives). In any case, it is reiterated that every online publication is subject to verification regarding compliance with the regulations on the protection of personal data and the Guidelines of the Guarantor in this regard, as indicated also in the three-year Plans for the prevention of corruption and transparency (PTPCT), adopted annually, and in the current Integrated Plan of activities and organization (PIAO) 2023-2025, which incorporates the contents of the PTPCTs. The issue of the publication of identification documents subject to reporting refers to proceedings dating back, closely related to procurement procedures referable to 2 territorial structures, which have been made aware of the issue (as have all central and peripheral ministerial structures), for which it is believed that the technical and organizational measures implemented are suitable to prevent the recurrence of the same problem in the future. Moreover, it should be considered that, even in this case, the conduct was dictated by a mere and involuntary human error resulting from the urgency to publish the tender documents for transparency purposes, which did not allow for...

carefully select the documents to be published. It should also be noted, among the measures implemented, that the same PAT has been equipped with a specific Alert, which serves to notify those uploading documents online to also verify compliance with the rules regarding the protection of personal data (the Alerts specifically warn that copies of identification documents must not be published under any circumstances). Furthermore, it is specified that the Ministry, regarding the reported case, is committed to conducting further checks (technical and organizational) in order to prevent the same critical issue reported by the Guarantor concerning the online retrieval of identification documents from occurring in the future.

5. Evaluations of the Guarantor and outcome of the investigation regarding the submitted reports

The issue at hand in the case submitted to the attention of the Guarantor concerns the online publication of various documents – containing personal data and information, including copies of identification documents and health cards – available on web addresses related to the MIT domain (trasparenza.mit.gov.it). In this regard, the Ministry, both in its defense submissions and during the hearing, confirmed that it had maintained the conduct established and contested by the Office, describing the measures taken to end the violations of the regulations regarding the protection of personal data that were contested. Specifically, it was represented – among other things – that “the conduct was dictated by a mere and unintentional human error resulting from the urgency to publish the tender documents for transparency purposes, which did not allow for careful selection of the documents to be published.” The error would also have stemmed from “the uncertainty of the regulatory context regarding publication obligations for transparency purposes, arising from the coexistence of numerous sources, even of different ranks, that have succeeded each other over time” and “from the fear of managers of incurring violations or sanctions for non-compliance with publication obligations.” The Entity also stated that following the communication from the Guarantor, it promptly “activated to carry out all necessary checks and activities to eliminate the critical issues identified by the Guarantor,” removing “all erroneously published data” and undertaking “all necessary actions to prevent the risk of similar incidents occurring in the future.”

These circumstances and all the elements highlighted in the above defense writings, examined as a whole and certainly deserving of consideration for the evaluation of the conduct (see next paragraph), are, however, not sufficient to allow for the archiving of the present procedure, as none of the hypotheses provided for in Article 11 of the Guarantor's Regulation No. 1/2019 apply. For this reason –

while taking into account the measures indicated by the administration to prevent the recurrence in the future of the contested personal data processing – the preliminary evaluations of the Office made with note prot. XX of XX are confirmed, and it is noted that the conduct of the Ministry of Infrastructure and Transport is not compliant with the GDPR. This is because the personal data contained in the identification documents and health cards published online – on URLs belonging to the Ministry's domain (trasparenza.mit.gov.it) – were disseminated:

- a) in the absence of suitable regulatory grounds, in violation of Article 2-ter, paragraphs 1 and 3, of the Code, as well as the basic principles of processing contained in Articles 5, paragraph 1, letters a) and c); 6, paragraph 1, letters c) and e), paragraph 2 and paragraph 3, letter b), of the GDPR;
- b) without respecting the principles of "purpose limitation" and "data minimization," according to which personal data must be necessary and proportionate, in violation of Article 5, paragraph 1, letters b) and c), of the GDPR;
- c) without adopting, at the time of the conduct, "technical and organizational measures" adequate "to effectively implement the principles of data protection" from the design stage and to ensure that only "the personal data necessary for each specific purpose of processing" are processed by "default setting," in violation of Article 25, paragraphs 1 and 2, of the GDPR;

Considering, however, that the conduct has exhausted its effects – as the data controller has declared that it has removed the contested personal data from the URLs indicated in the Office's notes (prot. nos. XX and note prot. XX), conducting further checks and also taking steps to prevent indexing on the Google search engine – without prejudice to what will be said regarding the application of the administrative pecuniary sanction, the conditions for the adoption of further corrective measures under Article 58, paragraph 2, of the GDPR do not apply.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction (Articles 58, paragraph 2, letter i; 83 of the GDPR)

The Ministry of Infrastructure and Transport has been found to have violated Articles 5, paragraph 1, letters a) - c); 6, paragraph 1, letters c) and e), paragraph 2 and paragraph 3, letter b); 25, paragraphs 1 and 2, of the GDPR; as well as Article 2-ter, paragraphs 1 and 3, of the Code. The violation of the cited provisions – also considering the reference contained in Article 166, paragraph 2, of the Code – is subject to the application of the administrative pecuniary sanction provided for in Article 83, paragraphs 4 and 5, of the GDPR. In this regard, taking into account what is provided for in Article 83, paragraph 3, of the GDPR, where it is established that...

"Where, in relation to the same processing or related processing, a data controller or a data processor violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," in the case at hand, the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the GDPR applies. The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the GDPR, as well as Article 166 of the Code, has the corrective power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case." In this context, "the College [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount, taking into due account the elements provided for by Article 83, paragraph 2, of the GDPR. In this regard, it appears that the processing carried out in violation of the regulations on personal data protection involved the online dissemination of personal data not belonging to special categories nor to criminal convictions or offenses (Articles 9 and 10 of the GDPR), contained – according to the statements made – in approximately 81 documents. The established violation is evidently negligent, as it resulted – as reported in the defense briefs and during the hearing – from "a mere and involuntary human error." The conduct is, in any case, "limited in time

[...], episodic and not systematic, having concerned [...] a minimal percentage of publications mostly related to a period prior to the use of the e-procurement platform," the majority of which "date back to the years 2017-2020" with "few violations related to the years 2021 and 2022." The Ministry "Beyond the reports to the Supervisory Authority" has not received, to date, "legal actions [...] from the interested parties [...] for improper dissemination of data online." In any case, the entity, following the request of the Office, has taken action to remove the personal data of the interested parties and has collaborated with this Authority during the investigation of this proceeding in order to remedy the violation, mitigating its possible negative effects. In this regard, it has also been represented that "the Ministry, in addition to promptly taking action to resolve the identified issues, has asked the search engine Google to remove also the 'thumbnails' (i.e., low-resolution previews) of the identification documents of the interested parties, automatically retained by the search engine even after the removal of the file. This action was taken in order to further minimize the presence of the aforementioned 'thumbnails' on the search engine."

The administration has also requested that, for the purposes of evaluating the conduct, account be taken of the complexity of the internal organization of the Ministry, which includes numerous central and peripheral structures (described in the documents) and the circumstance that the major issues would have been limited to individual territorial structures, particularly concerning the "publication obligations related to procurement procedures and the appointment of consultants and collaborators involved in the aforementioned procedures." In particular, the "issue of the publication of the identification documents subject to reporting refers to proceedings dating back, closely related to procurement procedures attributable to 2 territorial structures," and the error would be "consequent to the urgency of publishing the tender documents for transparency purposes that did not allow for careful selection of the documents to be published." However, the aforementioned structures have "been made aware of the issue (as have all central and peripheral ministerial structures)" and "specific training for the R.U.P. has been scheduled regarding compliance with privacy rules in the online publication of documents of relevant competence."

Furthermore, regarding the measures implemented by the Ministry to prevent the recurrence of the same conduct reported to the Authority in the future, it has been represented that "every online publication is subject to verification concerning compliance with the regulations on personal data protection and the Guidelines of the Authority in this regard, as indicated also in the three-year Plans for the prevention of corruption and transparency (PTPCT), adopted annually, and in the current Integrated Plan of activities and organization (PIAO) 2023-2025, which incorporates the contents of the PTPCT" and that "the same PAT has been equipped with a specific Alert, which serves to notify those who are uploading documents online to also verify compliance with the rules on personal data protection (the Alerts particularly notify that copies of identification documents must not be published in any case)."

It should also be noted that in the response to the Authority, various technical and organizational measures implemented pursuant to Articles 25-32 of the GDPR have been described (including the adoption of specific circulars from the Cabinet, the Transparency Officer, the General Director for Digitalization, IT and statistical systems, and the DPO addressed to all structures). of the Administration regarding the precautions to be adopted during the publication of data; the organization of specific training courses for staff; the establishment of an ad hoc Commission for the verification and monitoring of compliance with regulations concerning the processing of personal data, carried out for the purposes of publicity and transparency on the institutional website of the Ministry). In any case, there are no previous relevant violations of the GDPR committed by the Ministry.

In light of the aforementioned elements, assessed as a whole, it is deemed necessary to determine, pursuant to Article 83, paragraphs 2 and 3, of the GDPR, the amount of the monetary penalty, as provided for in Article 83, paragraph 5, of the GDPR, in the amount of €24,000.00 (twenty-four thousand) for the violation of Articles 5, paragraph 1, letters a)-c); 6, paragraph 1, letters c) and e), paragraphs 2 and 3, letter b); 25, paragraphs 1 and 2, of the GDPR; as well as Article 2-ter, paragraphs 1 and 3, of the Code, as an administrative monetary penalty deemed effective,

proportionate, and dissuasive pursuant to Article 83, paragraph 1, of the same GDPR.

In relation to the specific circumstances of this case, concerning the dissemination of personal data online in the absence of an appropriate legal basis and in violation of the principles of data minimization and purpose limitation (Article 2-ter, paragraphs 1 and 3, of the Code; Article 5, paragraph 1, letters b and c, of the GDPR), it is also considered that the accessory sanction of publishing this provision on the website of the Guarantor should be applied, as provided for in Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor Regulation No. 1/2019.

Finally, it is believed that the conditions set forth in Article 17 of the Guarantor Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

noting the unlawfulness of the processing carried out by the Ministry of Infrastructure and Transport as indicated in the reasoning pursuant to Articles 58, paragraph 2, letter i), and 83 of the GDPR

ORDERS

the Ministry of Infrastructure and Transport, represented by the legal representative pro tempore, with registered office at Via Nomentana n. 2 - 00161 Rome, Tax Code 97532760580, to pay the sum of €24,000.00 (twenty-four thousand) as an administrative monetary penalty for the violations stated in the reasoning;

COMMANDS

the same Ministry to pay the sum of €24,000.00 (twenty-four thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981.

It is reminded that the offender retains the option to resolve the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed penalty, within the term provided for in Article 10, paragraph 3, of Legislative Decree No. 150 of 1/9/2011, as provided for the filing of the appeal as indicated below (Article 166, paragraph 8, of the Code).

ORDERS

- the publication of this provision on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor Regulation No. 1/2019;
- the annotation in the internal register of the Authority of the violations and the measures adopted pursuant to Article 58, paragraph 2, of the GDPR with this provision, as provided for in Article 17 of the Guarantor Regulation No. 1/2019.

Pursuant to Article 78 of the GDPR, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, May 17, 2023

THE PRESIDENT

Stanzione

THE RAPPOORTEUR

Scorza

THE DEPUTY SECRETARY GENERAL

Filippi